



**EXECUTIVE OFFICE OF THE PRESIDENT
OFFICE OF MANAGEMENT AND BUDGET
WASHINGTON, D.C. 20503**

September 15, 2026
(House)

STATEMENT OF ADMINISTRATION POLICY

H.J. Res. 213 – Providing for Congressional Disapproval of the Rule Issued by the Environmental Protection Agency relating to "California State Nonroad Engine Pollution Control Standards; Commercial Harbor Craft Regulations; Notice of Decision"

(Rep. Gallagher, R-CA, and five cosponsors)

The Administration strongly supports passage of H.J. Res. 213, which would disapprove a waiver issued by the Environmental Protection Agency relating to “California State Nonroad Engine Pollution Control Standards; Commercial Harbor Craft Regulations; Notice of Decision.”

The Clean Air Act allows California to seek a waiver of the Act’s preemption of state regulation of emissions from new nonroad engines and vehicles, if certain conditions are met. The previous Administration granted the California Air Resources Board’s amendments to its Commercial Harbor Craft regulation without submitting it to Congress for review. The Harbor Craft amendments establish emissions requirements for commercial vessels operating in California waters and expands this regulation to additional vessel categories, including ferries, workboats, and commercial fishing vessels, while imposing strict new engine standards and zero-emission requirements.

The Harbor Craft amendments impose burdensome and unrealistic zero-emission requirements on vessels. The maritime industry has faced economic hardship while trying to comply, and Americans have suffered through maritime jobs being threatened and prices being raised on goods shipped by sea. The Administration supports stopping California from imposing unlawful, unachievable policies that weaken American competitiveness and further strain the nation's supply chains.

If H.J. Res. 213 were presented to the President, his advisors would recommend that he sign it into law.

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